

- RAG Learning

# 1.1 Democracy and Participation

Politics — Edexcel (9PL0) — Component 1: UK Politics, Section A

This topic opens Component 1 and supplies two of the three questions on that paper. Almost everything in it turns on one distinction: the difference between a **system of government** and the **quality of the democracy** that system delivers. The UK is unambiguously a representative democracy; whether it is a *healthy* one is the contested question, and examiners reward answers that keep the two apart.

**Legitimacy** — the rightful use of power in accordance with pre-set criteria or widely-held agreements, such as a government's right to rule following an election.

**Direct democracy** — citizens decide policy questions themselves rather than through representatives.

**Representative democracy** — citizens elect representatives who deliberate and decide on their behalf.

**Pluralist democracy** — power is dispersed among many competing groups, none of which dominates.

**Democratic deficit** — a flaw in the democratic process where decisions are taken by bodies lacking sufficient accountability to the electorate.

**Participation crisis** — the claim that citizens are disengaging from the formal processes of politics, chiefly voting and party membership.

**Franchise / suffrage** — the legal right to vote in public elections.

**Think tank** — a research organisation that develops and promotes policy ideas.

**Lobbyist** — a person paid to influence decision-makers on behalf of a client or cause.

## 1. Current systems of representative and direct democracy

|  | Direct democracy | Representative democracy |
|--|------------------|--------------------------|
|--|------------------|--------------------------|

|                    |                                                                                                          |                                                                                                                                   |
|--------------------|----------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------|
| <b>Who decides</b> | Citizens decide policy questions themselves                                                              | Citizens elect representatives who decide on their behalf                                                                         |
| <b>Origin</b>      | Athenian assembly; Swiss cantons                                                                         | Developed with the extension of the franchise from 1832                                                                           |
| <b>UK examples</b> | Referendums; e-petitions; recall petitions; some local consultations                                     | General, devolved, local and mayoral elections                                                                                    |
| <b>Strengths</b>   | Pure popular will; no distortion by representatives; high legitimacy; educative effect on participants   | Deliberation; expertise; protection of minorities; continuous accountability; practicable at scale                                |
| <b>Weaknesses</b>  | Tyranny of the majority; complex questions reduced to binary; vulnerable to campaign effects and funding | Representatives may substitute their judgement; parties may not offer the combination a voter wants; accountability only periodic |

## Similarities worth stating

A common error is to treat the two as opposites. Both rest on political equality — one person, one vote — both require free expression and a genuine choice, and both confer legitimacy on the outcome. The UK combines them, and the interesting questions arise at the join rather than within either.

## Referendums in the UK since 1975

| Year | Question           | Turnout | Result    | Significance                                                           |
|------|--------------------|---------|-----------|------------------------------------------------------------------------|
| 1975 | Remain in the EEC? | 64.0%   | 67.2% Yes | First UK-wide referendum; collective responsibility formally suspended |

|      |                                      |               |                                                    |                                                                                              |
|------|--------------------------------------|---------------|----------------------------------------------------|----------------------------------------------------------------------------------------------|
| 1979 | Scottish and Welsh devolution        | 63.6% / 58.8% | Scotland Yes but below the 40% threshold; Wales No | The only UK use of a turnout threshold — and it voided a Yes vote                            |
| 1997 | Scottish Parliament / Welsh Assembly | 60.2% / 50.1% | 74.3% Yes / 50.3% Yes                              | Preceded by a White Paper specifying the scheme                                              |
| 1998 | Good Friday Agreement                | 81.1%         | 71.1% Yes                                          | Legitimised a constitutional settlement in a divided society                                 |
| 2011 | Alternative Vote                     | 42.2%         | 67.9% No                                           | Conceded by the Conservatives as the price of coalition; treated as settling the question    |
| 2014 | Scottish independence                | 84.6%         | 55.3% No                                           | Highest turnout of any UK-wide vote in modern times; votes at 16                             |
| 2016 | EU membership                        | 72.2%         | 51.9% Leave                                        | Binary question, unspecified alternative; years of subsequent conflict over what it required |

The pattern is the most examinable thing here. Where the alternative was **specified in advance** — 1997 devolution, with a White Paper setting out the scheme — implementation was straightforward. Where the question was binary but the alternative **undefined** — 2016 — the result conferred a mandate whose content was contested and which no institution had clear authority to determine.

**Exam Tip:** A 30-mark question on referendums is not really about referendums. It is about parliamentary sovereignty. The strongest answers explain that Parliament remained legally free to disregard the 2016 result and politically unable to, then draw the conclusion about

where sovereignty actually sits. Note also the absence of rules: no threshold (1979 aside), no settled franchise, no agreement on when a question may be asked again.

## Other direct mechanisms

- **E-petitions** — 100,000 signatures triggers consideration for a Westminster Hall debate. High visibility, no obligation to act; the 2019 petition to revoke Article 50 reached over 6 million signatures and changed nothing.
- **Recall of MPs Act 2015** — a recall petition is triggered by a custodial sentence, suspension from the Commons for at least 10 sitting days, or a conviction for false expenses claims. If 10% of constituents sign, a by-election follows. Used successfully in North Antrim (2018), Brecon and Radnorshire (2019), Wakefield (2022) and elsewhere. It is not a general right of recall: voters cannot remove an MP for their voting record.

## 2. A wider franchise and debates over suffrage

| Act                                   | Effect                                                                  | Electorate after              |
|---------------------------------------|-------------------------------------------------------------------------|-------------------------------|
| Great Reform Act 1832                 | Extended the vote to parts of the middle class; removed rotten boroughs | ~7% of adults                 |
| Representation of the People Act 1867 | Urban working-class men meeting a property qualification                | ~16%                          |
| Representation of the People Act 1884 | Extended the county franchise on the same terms                         | ~29%                          |
| Representation of the People Act 1918 | All men over 21; women over 30 with a property qualification            | ~74%                          |
| Equal Franchise Act 1928              | Equalised the voting age at 21                                          | ~97% of adults                |
| Representation of the People Act 1969 | Voting age lowered to 18                                                | Near-universal adult suffrage |

|                                                          |                                    |                                    |
|----------------------------------------------------------|------------------------------------|------------------------------------|
| Scotland Act 2016; Senedd and Elections (Wales) Act 2020 | Votes at 16 for devolved elections | Divergent franchises within the UK |
|----------------------------------------------------------|------------------------------------|------------------------------------|

## The suffrage campaigns

The **suffragists** (NUWSS, Millicent Fawcett, founded 1897) pursued constitutional methods — petitions, lobbying, peaceful demonstration. The **suffragettes** (WSPU, Emmeline Pankhurst, founded 1903) adopted direct action including arson, window-breaking and hunger strikes, met by force-feeding under the Cat and Mouse Act 1913. Historians dispute which mattered more, and the 1918 Act's timing — immediately after a war in which women's labour was indispensable — complicates both claims. The debate is a useful template for pressure group methods generally: does disruption win concessions or harden opposition?

## Current debates

**Votes at 16.** For: at 16 a citizen may work and pay income tax, consent to medical treatment, and join the armed forces with parental consent, so excluding them from decisions that bind them is inconsistent. Voting is habit-forming, so enfranchising people while still in education and at a settled address may raise lifetime turnout; Scotland's 2014 experience saw high turnout in that group. Against: political judgement at 16 is still forming and may be more open to the influence of parents and teachers; other thresholds sit at 18, so the change creates a new inconsistency rather than removing one. Note too that the argument is not disinterested — parties polling well among young voters have most to gain.

**Prisoner voting.** *Hirst v UK* (2005) held the blanket ban incompatible with Article 3 of Protocol 1 ECHR. The UK declined to comply for more than a decade; in 2017 a minimal administrative change allowed prisoners on temporary licence to vote. This example serves two topics at once: as a suffrage debate, and as evidence of the limits of rights enforcement against a determined Parliament.

**Compulsory voting.** For: it would eliminate turnout inequality by class and age, and remove the incentive to target only likely voters. Against: it compels participation that may be uninformed, and treats the symptom rather than the cause of disengagement.

**Registration.** Individual Electoral Registration, introduced in 2014, replaced household registration and is estimated to have left around 8 million eligible people unregistered or incorrectly registered. Automatic registration is the standard proposed remedy.

### 3. Pressure groups and other influences

| Type                           | Definition                                                                                  | Examples                                               |
|--------------------------------|---------------------------------------------------------------------------------------------|--------------------------------------------------------|
| <b>Sectional</b><br>(interest) | Represents a specific group; membership usually restricted to those who share that position | BMA, Unite, NFU, Law Society                           |
| <b>Promotional</b><br>(cause)  | Campaigns on an issue or value; open to anyone who supports the cause                       | Greenpeace, Liberty, Howard League, Shelter            |
| <b>Insider</b>                 | Has consultative access to government decision-makers                                       | BMA, CBI, RSPB, RSPCA                                  |
| <b>Outsider</b>                | No such access; relies on public campaigning and direct action                              | Extinction Rebellion, Just Stop Oil, Fathers 4 Justice |

The typologies overlap, and saying so earns credit: many sectional groups campaign publicly, some outsider groups are outsiders *by choice* because access would compromise them, and insider status can be lost when a government changes.

#### Case studies of success and failure

- **Success — the Gurkha Justice Campaign (2009).** Combined a sympathetic cause, celebrity backing (Joanna Lumley), media pressure and a government with a small effective majority. Produced a Commons defeat and a policy reversal on settlement rights.
- **Success — the Snowdrop Campaign (1996–97).** Following Dunblane, it secured the Firearms (Amendment) Acts banning most handguns. Aligned with overwhelming public sentiment and faced a weak opposing interest.
- **Success — Marcus Rashford and free school meals (2020).** An individual with public standing achieved two government reversals within months, which illustrates how far media

profile now substitutes for organisational access.

- **Failure — the Countryside Alliance (1998–2004).** Mass demonstrations, substantial funding and a committed membership did not prevent the Hunting Act 2004, because the group was opposed by a government with a large majority and a manifesto commitment.
- **Failure — the Stop the War Coalition (2003).** The largest demonstration in British history did not prevent the Iraq deployment, which the Commons had voted for.

The determinants are therefore: **alignment with government priorities, parliamentary arithmetic, resources, expertise the government needs**, and **public sympathy** — not the group's type.

## Other influences

- **Think tanks** — IFS and IPPR on the centre-left of the spectrum of influence, the Adam Smith Institute and the Institute of Economic Affairs on the right, the Centre for Social Justice on welfare. Influence runs through supplying ideas and evidence, and is greatest where a party is developing policy in opposition.
- **Lobbyists** — the Transparency of Lobbying Act 2014 created a register of consultant lobbyists, but it covers only those lobbying ministers and permanent secretaries directly on behalf of a third party, which critics argue excludes the great majority of the activity, including in-house corporate lobbying.
- **Corporations** — influence through investment and employment decisions as much as through direct representation. The 2022 market reaction to the mini-budget is the clearest recent illustration of non-electoral power over policy.

**Exam Tip:** Pressure groups are the standard vehicle for a pluralism-versus-elitism question. Pluralism says power is dispersed among many competing groups; elitism says access follows resources, so corporate and professional interests reach insider status far more readily than outsider causes. The *count* of groups supports pluralism; the *distribution of* access supports elitism. The strongest judgement is that competition is real but structurally weighted.

## 4. Rights in context

| Instrument                             | What it does                                                                                                                     | Limitation                                                                                            |
|----------------------------------------|----------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------|
| <b>Magna Carta 1215</b>                | Established that the monarch is subject to law; due process                                                                      | Largely symbolic today; most clauses repealed                                                         |
| <b>Human Rights Act 1998</b>           | Gives ECHR rights effect in UK courts; s.3 interpretive duty; s.4 declaration of incompatibility; s.6 duty on public authorities | An ordinary statute — repealable by simple majority. A declaration does not invalidate the provision. |
| <b>Equality Act 2010</b>               | Consolidates protection against discrimination across nine protected characteristics                                             | Enforcement depends on individuals bringing claims, with cost as a barrier                            |
| <b>Freedom of Information Act 2000</b> | Right of access to information held by public authorities                                                                        | Wide exemptions; a ministerial veto, used over the Prince of Wales correspondence                     |
| <b>Common law</b>                      | Residual liberty — conduct is lawful unless prohibited; judicial review                                                          | No protection against Parliament legislating to prohibit                                              |

## Milestone cases

- ***A v Home Secretary (2004)*, the Belmarsh case** — the Law Lords held that indefinite detention of foreign terrorism suspects was incompatible with Articles 5 and 14. Parliament responded by replacing the regime with control orders. The case shows both the power of a declaration and its limits: the detention was not ended by the court but by Parliament choosing to respond.
- ***Hirst v UK (2005)*** — prisoner voting; over a decade of non-compliance.
- ***Miller (2017)*** — prerogative could not be used to remove rights conferred by statute.

## Collective rights against individual rights

The recurring clash is individual liberty against collective security. Counter-terrorism legislation, the Investigatory Powers Act 2016 and restrictions on protest under the Police, Crime, Sentencing and Courts Act 2022 and the Public Order Act 2023 each restrict individual rights in the name of a

collective interest. The UK has no mechanism for resolving the conflict other than Parliament's own judgement, because no court may strike down the legislation.

**Exam Tip:** The decisive point on rights protection is structural, not a list of statutes: the body whose power rights are meant to limit is the same body that decides whether those rights continue to exist. State that and the essay has a conclusion rather than a summary. Compare with the US, where entrenched rights and judicial review put the question beyond a legislative majority — at the cost of handing it to unelected judges.

## 5. Is there a participation crisis?

| Evidence for                                                                                           | Evidence against                                                                      |
|--------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------|
| Turnout fell from 77.7% (1992) to 59.4% (2001) and has not returned to pre-1997 levels                 | Pressure group and campaign membership has grown substantially                        |
| Party membership is far below its post-war peak, when the Conservatives alone claimed nearly 3 million | Labour membership rose above 500,000 after 2015; the SNP grew several-fold after 2014 |
| Local and PCC election turnout is much lower still — PCC turnout has fallen below 20%                  | E-petitions routinely attract hundreds of thousands of signatures                     |
| Turnout among under-25s is consistently well below that of over-65s                                    | The 2014 Scottish referendum recorded 84.6% turnout                                   |
| Around 8 million people are unregistered or incorrectly registered                                     | Single-issue mobilisation on climate and social causes draws large numbers            |

### Proposed remedies

- **Electoral reform** — a proportional system would reduce wasted votes and end the concentration of campaigning on marginal seats. Cost: weaker direct accountability, since governments would be formed by post-election bargaining.

- **Votes at 16 and automatic registration** — enlarges the electorate, but reaches the groups already least likely to vote, so it addresses the legal barrier and not the social one.
- **Compulsory voting** — removes turnout inequality; compels uninformed participation.
- **Citizens' assemblies** — randomly selected citizens deliberate with expert evidence, as used on abortion in Ireland. Addresses the main weakness of referendums, but is advisory, so influence depends on the government's willingness to act.
- **Digital democracy** — online voting and consultation; raises security and secrecy concerns.

The defensible conclusion is that the *form* of participation has changed rather than disappeared — but that the newer forms are more episodic and more unequally distributed by class, age and education than voting is, so a shift in form is not equivalent in democratic value. The crisis, if there is one, is of **equality** of participation rather than of its quantity.

## Quick recall

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- UK = representative democracy with increasing direct elements since 1997
- Referendums: advisory in law, binding in practice, no threshold or franchise rules — 1979 is the one threshold case, and it voided a Yes vote
- Specified alternative (1997 devolution) implements cleanly; unspecified alternative (2016) does not
- Franchise: 1832, 1867, 1884, 1918, 1928, 1969; votes at 16 in Scotland and Wales
- Pressure group success follows access, resources and parliamentary arithmetic — not group type
- Gurkhas, Snowdrop, Rashford = success; Countryside Alliance, Stop the War = failure against a majority
- Rights rest on an ordinary statute, so on political restraint rather than entrenchment — Belmarsh shows both the power and the limit
- Participation: a crisis of equality rather than of quantity